

		patient. (Compl. ¶ 37.) Defendant breached its duty by allowing de los Santos to violate Plaintiff's rights as a patient and Plaintiff was harmed. (<i>Id.</i> at ¶¶ 38-39.) The Complaint fails to allege that Defendant had knowledge of de los Santos's unfitness. There are no facts showing that Defendant should have known that de los Santos had a propensity to assault and batter patients. The demurrer is sustained as to the fifth cause of action. Defendant to give notice.
51	Flynn vs. FCA US, LLC 23-01333219	Motion to Set Aside/Vacate Dismissal NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
52	Wysocki vs. Hoang 25-01512631	Motion to Be Relieved as Counsel of Record Attorney Yuri Voronin and Wade Litigation, APC (together, "Moving Counsel") move to be relieved as counsel for Defendants John Hoang, an individual, and John Hoang dba All American Builders & Contractors. The unopposed motion is GRANTED. The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by Moving Counsel, Attorney Yuri Voronin and Wade Litigation, APC, and finds that Moving Counsel have complied with the requirements of Rule 3.1362. The court's order shall become effective upon the filing of a Proof of Service showing service of the order on Defendants John Hoang, an individual, and John Hoang dba All American Builders & Contractors. Moving Counsel to give notice within 5 court days of the hearing.
54	Reichert vs. Wightman 25-01481529	2x Motions to Be Relieved as Counsel of Record The motions of attorney Casey R. Johnson to withdraw as attorney of record for Plaintiffs Jeffery Reichert (ROA 55) and Nicolette Reichert, individually and as Guardian ad Litem for Asa Reichert and Violet Reichert (ROA 46) are DENIED WITHOUT PREJUDICE. California Rule of Court, rule 3.1362(d), requires moving counsel to serve the notice of motion, motion, declaration, and proposed order on the client and all parties who have appeared in the action. The proof of service submitted with the moving papers does not demonstrate that the clients were served. In addition, moving counsel has not lodged a proposed order (Form MC-053) as required by California Rules of Court, rule 3.1362(e), and the record does not

		demonstrate that the proposed order was served on the clients as required by rule 3.1362(d). Moving attorney to give notice.
55	Patricia Long as Trustee for the Finished Barn Family Trust vs. Global Discoveries Ltd., LLC 22-01268095	Motion for Attorney Fees NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
57	Xia vs. Placentia Yorba Linda Unified School District 24-01403405	Demurrer to Amended Complaint & Motion to Strike Portions of Complaint Defendant California Commission on Teacher Credentialing (“Commission”) demurs to the First Amended Complaint (“FAC”) filed by Plaintiffs Ye Ying Xia and Aretha Li. The demurrer is SUSTAINED to the fourth cause of action for failure to exercise reasonable diligence to discharge mandatory duty and the fifth cause of action for waste of taxpayer funds. Plaintiff’s request for judicial notice is denied. The requested documents are not matters for which judicial notice is required or permitted. (See Evid. Code, §§ 451-452.) Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it on or before June 19, 2026. Plaintiffs are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) <u>Compliance with the Government Claims Act</u> In order to pursue a tort claim against a public entity or public employee under California state law, Plaintiffs must establish that they have complied with the claim presentation requirements of the Government Claims Act. (Gov. Code, §§ 945.4, 950.2.) “Before a civil action may be brought against a public entity [or public employee], a claim must first be presented to the public entity and rejected.” (<i>Ocean Servs. Corp. v. Ventura Port District</i> (1993) 15 Cal.App.4th 1762, 1775; Gov. Code, § 950.2.) “[F]ailure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that